

MEMORANDUM OF UNDERSTANDING (MoU)

BETWEEN

DURANC TECH SERVICES PVT LTD

AND

YOGI VEMANA UNIVERSITY

This Memorandum of Understanding (hereinafter referred to as "MoU") is made effective on and from 27th October 2021 (the "**Effective Date**")

BY AND BETWEEN

Duranc Tech Services Pvt Ltd, a company incorporated under the provisions of the Companies Act 1956, with its principal place of business at 2-64/2/A, 5th Floor, Megha Hills, Madhapur, Hyderabad – 500081

AND

Yogi Vemana University, a state-run University established by an Act of the Andhra Pradesh State Legislative Assembly in 2006 in Kadapa, Andhra Pradesh - 516005

Duranc Tech Services Pvt Ltd (**DURANC**) and Yogi Vemana University (**UNIVERSITY**) are hereinafter collectively referred to as "Parties" and individually as "Party"

WHEREAS Duranc is a pioneer in providing smart video surveillance solutions using the state-of-the-art AI technologies; and wishes to collaborate with the University in building a strong ecosystem of AI surveillance professionals

WHEREAS Yogi Vemana University is an emerging premier State University dedicated to Teaching, Research and Service; and seeks to create a Center of Excellence (CoE) for AI based surveillance in the University

Now therefore, in consideration of the foregoing, the Parties have agreed to collaborate hereto whereunder (all below points together referred to as "Purpose"):

1. DURANC will permit a few batches of third and final year students of the University to carry out the project work under joint guidance
2. University will provide infrastructure like lab, conference room, systems, internet for the learning and development of students and to carry out the project work.
3. DURANC team will train students on latest technologies in Artificial Intelligence such as Computer Vision and Neural Networks which in turn utilizes trained students on ongoing projects of DURANC
4. DURANC and University will work together to establish a surveillance center of excellence at the University which can undertake:
 - a. Research in latest video analytics AI models
 - b. Study latest Video surveillance products and solutions and publish papers
 - c. Evaluate and provide recommendations on available technologies and solutions for the benefit of the industry and society at large

NOW THIS MOU WITNESSETH AS UNDER:

1. Representations and Warranties

- a. DURANC Tech Services Pvt Ltd represents and warrants as under:
 - i. It is legally constituted under the applicable laws and is competent to enter into this MoU with the University;
 - ii. The execution of this MoU is not in contravention to the laws to which DURANC is subjected to;
 - iii. All necessary approvals for execution of this MoU have been obtained and all such approvals are valid and subsisting on the date of this MoU.
- b. University represents and warrants as under:
 - i. It is legally constituted under the applicable laws and is competent to enter into this MoU with DURANC;
 - ii. The execution of this MoU is not in contravention to the laws to which University is subjected to;
 - iii. All necessary approvals for execution of this MoU have been obtained and all such approvals are valid and subsisting on the date of this MoU.

2. Nature of Relationship

- a. This MoU is for collaboration between both parties, for mutual benefit, for the purposes set out above in this MoU which will enhance the skills and experience of the students
- b. This MoU shall be valid for 3 years from the effective date mentioned above and each party shall be at full liberty to terminate the collaboration with a prior written notice of 3 months.
- c. Both parties shall take all reasonable steps to ensure successful completion of the collaboration and cooperate with each other in duly carrying out the obligations agreed upon.
- d. The University shall bear all expenses such as providing infrastructure, network, power and internet access and any other facilities required for establishing the center of excellence.
- e. DURANC shall provide the necessary know-how and training to the students to carry out the research in the field of smart surveillance.

3. Terms and Conditions

- a. This collaboration shall not be exclusive to both parties and shall not disallow each party from having similar collaboration with others. Except as expressly stated in this MoU, there shall be no obligation on any party to compensate the other party in any manner.
- b. Each party shall meet the expenses between them as mutually agreed.
- c. *Intellectual Property*: Each party shall respect the other's Intellectual Property (IP) and shall not infringe upon or stake claim to other party's intellectual property.
- d. *Independent entities*: Nothing in this MoU shall be construed, implied or deemed to create any relationship between the parties and no party shall hold out as an agent or representative of the other or create any liability for the other. Each party shall indemnify the other for breach of this clause.
- e. *Confidentiality*: Both parties shall maintain confidentiality about any information, data, plans, discussions, strategies or any material which shall be deemed to be confidential and marked accordingly. The receiving party shall not disclose the same to any third party without written consent of the disclosing party, except for any provision under Right to Information Act, 2015.
- f. *Collaboration*: The parties acknowledge and agree that areas of collaboration as listed here in are not exhaustive in nature and the parties shall in good faith negotiate to elaborate upon the areas of collaboration along with the rights, responsibilities and obligations of

each party in relation to each area of collaboration. The parties may, from time to time, execute addenda or modifications to this MoU to incorporate such additional scope of collaborations or discussions.

- g. *Publicity:* Both parties shall use each other's name and logos in connection with any advertising or publicity materials or activities with prior written consent of the other party, which consent shall not be unreasonably withheld or delayed.
- h. *Liability:* Both parties agree that they are not liable to each other, or any other party not entering into the said MoU, for any damages including any special, incidental, consequential or indirect damages or claims arising out of this MoU.
- i. *Dispute Resolution:* Any and all disagreements/differences/disputes arising hereunder shall be resolved amicably by the designated senior executives/officers of the good offices of both Parties.
- j. *Entire MoU:* This MoU contains the entire understanding between the parties superseding any and all prior communications, MoUs or Agreements.

Both parties hereby agree that they shall make reasonable efforts towards achieving the purpose outlined in this MoU.

IN WITNESS WHEREOF each of the parties hereto have duly executed this MoU as of the date and year first above written.

SIGNED for and on behalf of



Duranc Tech Services Pvt Ltd

Name: **B. VAMSI KRISHNA**

Title: **Chief Operating Officer**

SIGNED for and on behalf of



Yogi Vemana University

REGISTRAR

Name: **YOGI VEMANA UNIVERSITY**

Title: **KADAPA - 516 005.**